

Court No. - 3

Case :- WRIT - C No. - 16201 of 2022

Petitioner :- Pt. Krishna Dutt Munia Devi Siksha Prasar Samiti

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 12.11.2021, issued by respondent no.4.

(ii) Issue a writ, order or direction in the nature of mandamus directing the superior respondent authority to decide the case of the petitioner finally and till then the respondent concerned may be restrain, not to recovery/ realize any of the amount in pursuant of the impugned demand notice dated 12.11.2021, based on provisional assessment order dated 14.12.2021.

Learned counsel for the respondent No 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.4 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.7.2022

T.S.